

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

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JAKWON RAMOS

SUMMONS

Plaintiff,

-against-

Plaintiff resides at:
1525 Unionport Road, Apt 8B
Bronx, New York 10462

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, AND DETECTIVE DARRELL
JULIEN, SHIELD #06746 OF THE 45TH PRECINCT,
Defendants,

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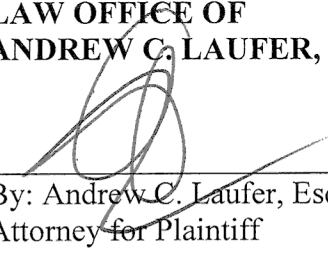
To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after service of this Summons or within 30 days after the service is complete if this Summons is not personally delivered to you within the state of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is the place of incident.

Dated: New York, New York
January 15, 2020

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**


By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
JAKWON RAMOS
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

DEFENDANT'S ADDRESS

THE CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
c/o CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

DETECTIVE DARRELL
JULIEN, SHIELD #06746 OF THE 45TH PRECINCT
2877 Barkley Avenue
Bronx, New York 10465

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

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JAKWON RAMOS,

VERIFIED COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, AND DETECTIVE DARRELL
JULIEN, SHIELD #06746 OF THE 45TH PRECINCT,

Defendants,

-----X

Plaintiff, by and through his attorney, Law Office of Andrew C. Laufer, PLLC complaining of the Defendants herein, upon information and belief, respectfully show to this Court, and allege as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, the Plaintiff was a resident of the County of Bronx, City and State of New York.
2. That at all times hereinafter mentioned Defendant, THE CITY OF NEW YORK was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, NEW YORK CITY POLICE DEPARTMENT was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
4. That at all times hereinafter mentioned Defendant, DETECTIVE DARRELL JULIEN, SHIELD #06746 OF THE 45TH PRECINCT OF THE NEW YORK CITY POLICE DEPARTMENT, was and still is employed with the New York City POLICE DEPARTMENT.
5. That prior to the institution of this action, a Notice of Claim was duly served upon and filed with the CITY OF NEW YORK on behalf of Plaintiff.

6. That the CITY OF NEW YORK adjourned their 50H examination of the plaintiff, which was to occur via video teleconference on December 12, 2019, because of technical issues and not by the fault of the plaintiff.

7. That at all time herein mentioned, DETECTIVE DARRELL JULIEN, SHIELD #06746 OF THE 45TH PRECINCT, was acting within the scope and course of his employment with the New York Police Department, and under color of State Law.

8. That at all times herein mentioned, DETECTIVE DARRELL JULIEN, SHIELD #06746 OF THE 45TH PRECINCT was acting in his individual and official capacity as an employee of Defendants THE CITY OF NEW YORK (CITY) and NEW YORK CITY POLICE DEPARTMENT (NYPD).

9. That all the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

STATEMENT OF FACTS AS TO ALL CAUSES OF ACTION

10. From approximately the 5th day of October, 2015 through the 18th day of December 2018, the plaintiff, JAKWON RAMOS, was a pretrial detainee in the care, custody, and control of the defendants for a crime he didn't commit.

11. Plaintiff's detention initially began near the location of 1529 Glover Street in the County of Bronx, City and State of New York. At the aforesaid place, the claimant was deprived of his state and federal civil rights under color of state law, all by agents, servant and/or employees of The City of New York, including, but not limited to, upon information and belief, by the City of New York, New York City Police Department, DETECTIVE DARRELL JULIEN, SHIELD #06746 OF THE 45TH PRECINCT, when he was imprisoned at various locations, were

maliciously charged and prosecuted for crimes of which he was innocent. All charges were dismissed on or about December 18, 2018.

12. The individual Defendant, DETECTIVE DARRELL JULIEN, SHIELD #06746 OF THE 45TH PRECINCT OF THE NEW YORK CITY POLICE DEPARTMENT, under color of state law, subjected Plaintiff to the foregoing acts and omissions without due process of the law, thereby depriving Plaintiff of his rights, privileges and immunities secured by the First, Fourth and Fourteenth Amendments to the United States Constitution, including without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable searches and seizure of his person, including the excessive use of force; (b) freedom from arrest without probable cause; (c) freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification of which Plaintiff was aware and did not consent; (d) freedom from the lodging of false charges against them by police; (e) freedom from abuse of process and malicious prosecution; and (f) the enjoyment of equal protection, privileges and immunities under the laws.

FIRST CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHTS UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION AND NEW YORK STATE LAW PREDICATED UPON THE MALICIOUS
PROSECUTION OF PLAINTIFF

13. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

14. Upon information and belief, on or about October 5, 2015 and from that time until the dismissal of charges, which was favorable termination for the accused, Defendants deliberately and maliciously prosecuted Plaintiff, an innocent man without any probable cause whatsoever, by filing or causing a criminal complaint to be filed in the Criminal Court of the City of New

York, Bronx County, for the purpose of falsely accusing the Plaintiff of violations of the criminal laws of the State of New York.

15. The commencement of these criminal proceedings was malicious and began with malice and without probable cause, so that the proceedings could succeed by the Defendants.

16. As a result of the aforementioned actions, including the initiation of the criminal prosecution of Plaintiff without probable cause, Defendants deprived Plaintiff of the rights, privileges and immunities secured by the Constitution and Laws of the United States of America and the Fourteenth Amendment and under the laws of New York State.

17. As a result of the aforementioned actions, Defendants deprived Plaintiff of the right to be free from unreasonable search and seizures secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments and under the laws of New York State.

18. As a result of the aforementioned actions, Defendants deprived Plaintiff of the right to liberty without due process of law secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments and under the laws of New York State.

19. The aforementioned conduct by Defendants was motivated and instigated by other than lawful reasons and without probable cause.

20. The aforementioned acts of Defendants were intentional, willful and malicious and performed with reckless disregard for and deliberate indifference to Plaintiff's rights.

21. Plaintiff has suffered humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution.

22. The aforementioned constitutional violations are all actionable under and pursuant to 42 U.S.C. § 1983, 1988, and under the laws of New York State.

SECOND CAUSE OF ACTION AGAINST DEFENDANTS PURSUANT TO 42 U.S.C § 1983
FOR DENIAL OF RIGHT TO A FAIR TRIAL

23. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

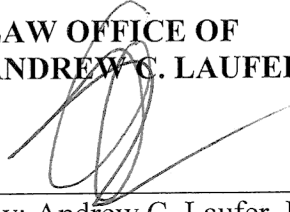
24. That the aforementioned actions of the Defendants constitute a denial of Plaintiff's right to a fair trial, in violation of Plaintiff's rights under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and entitle Plaintiff to recover monetary damages under 42 U.S.C. 1983.

25. The aforementioned constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1983 and 1988.

WHEREFORE, Plaintiff demands judgment against Defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for their pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and Plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

Dated: New York, New York
January 15, 2020

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
JAKWON RAMOS
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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JAKWON RAMOS,

VERIFICATION

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, AND DETECTIVE DARRELL
JULIEN, SHIELD #06746 OF THE 45TH PRECINCT,

Defendants,

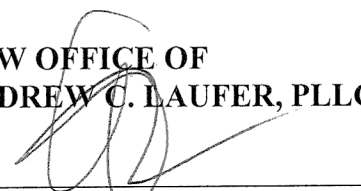
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ANDREW C. LAUFER, an attorney duly admitted to practice law in the Courts of New York, affirms the following to be true:

1. That I am a principal of the Law Office of Andrew C. Laufer, PLLC, attorney for the plaintiff in the within action. That I have read the foregoing complaint and know the contents thereof, and that the same are true to my knowledge, except as to the matters herein stated to be alleged upon information and belief, and that as to these matters I believe them to be true.
2. That the sources of my information and knowledge are records and investigation reports maintained within the file.
3. That the reason this verification is made by the affirmant and not by the plaintiff is that the plaintiff does not reside in the County of New York, which is the county wherein this firm maintains its office.

Dated: New York, New York
January 15, 2020

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**


By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
JAKWON RAMOS
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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Year:

JAKWON RAMOS,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
and DETECTIVE DARRELL JULIEN, SHIELD #06746 OF THE 45TH
PRECINCT,

Defendants,

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICE OF ANDREW C. LAUFER

Attorney(s) for Plaintiff

Office and Post Office Address
255 W. 36th Street, Suite 1104
New York, NY 10018

Tel: (212) 422 1020

Fax: (212) 422 1069

To:

Signature (Rule 130-1.1-a)

Print name beneath

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for:

PLEASE TAKE NOTICE:☐ **NOTICE OF ENTRY**

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

☐ **NOTICE OF SETTLEMENT**

that an order of which the within is a true copy
will be presented for settlement to the HON one of the judges of the
within named Court at

on at M.

Dated,

Yours, etc.

Law Office of Andrew C. Laufer